Bail under Section 45 of the Prevention of Money Laundering Act, 2002 in the Supreme Court of India, 2021 to 2026

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Topic

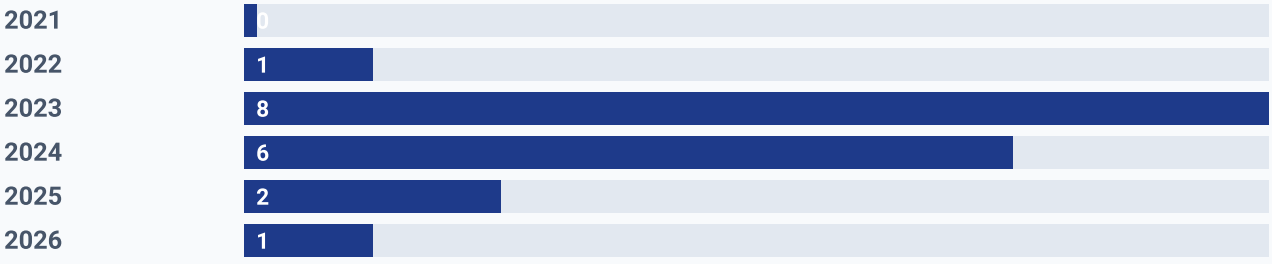
This project examines reasoned judgments of the Supreme Court of India deciding regular bail, anticipatory bail, and arrest-legality challenges under Section 45 and Section 19 of the Prevention of Money Laundering Act, 2002 (PMLA) between 1 September 2021 and 31 August 2026. Section 45(1) imposes stringent twin conditions requiring an accused to establish reasonable grounds to believe that they are not guilty of the offence and are not likely to commit any offence while on bail. The topic interests our team because the five-year period captures a profound doctrinal oscillation: from the three-judge bench in *Vijay Madanlal Choudhary* (2022) upholding the revived twin conditions, to the 2024–2026 jurisprudence subordinating statutory stringency to the fundamental right to a speedy trial under Article 21 of the Constitution.

How we found the judgments

We searched the official Supreme Court of India portal (`sci.gov.in` and Digital SCR / e-SCR) alongside Indian Kanoon using the Boolean queries `"Section 45" AND "Prevention of Money Laundering Act" AND "bail"` and `"Directorate of Enforcement" AND "Section 45" AND "INSC"` filtered between `01-09-2021` and `31-08-2026`. The initial search yielded 68 orders and judgments. Following the assignment protocol, we excluded summary Special Leave Petition (SLP) dismissals, unreasoned interim bail extensions, medical bail orders lacking doctrinal analysis, and judgments dealing purely with Section 5 attachment or Section 197 CrPC sanction (*Bibhu Prasad Acharya*). We retained 18 reportable, reasoned judgments carrying neutral `INSC` citations where the Supreme Court directly adjudicated bail thresholds or custodial release under the PMLA.

What the data shows

Chart 1: Judgments per year



Finding: The first chart tracks the annual distribution of reasoned PMLA bail judgments. Activity peaked in 2023 (8 judgments) and 2024 (6 judgments). What surprised us most was the sharp contrast in doctrinal direction: while 7 of the 8 judgments in 2023 enforced strict statutory compliance in favour of the ED, 5 of the 6 judgments in 2024 granted relief to individual accused by invoking procedural guardrails and Article 21.

Chart 2: Outcomes of appeals



Finding: The second chart displays formal procedural outcomes: 11 appeals were Allowed (61.1%) and 7 Dismissed (38.9%). At first glance, this suggests a court inclined to grant bail. However, cross-tabulating revealed a critical nuance: 3 of the 11 Allowed appeals (*M. Gopal Reddy*, *Aditya Tripathi*, *Kanhaiya Prasad*) were filed by the ED to cancel bail orders passed by High Courts that failed to record satisfaction under Section 45.

Chart 3: Winning party comparison (Who won)



Finding: The third chart isolates the substantive prevailing party. The State won 10 cases (55.6%) while Individual accused won 8 cases (44.4%). What stood out is the chronological bifurcation: from July 2022 to March 2024, the State won 8 out of 9 cases (88.9%). Conversely, from May 2024 to January 2026, individual accused won 7 out of 8 cases (87.5%).

Limits & AI-use disclosure

Limits: A reader should not conclude from these 18 reasoned judgments that nearly half of all PMLA undertrials secure bail before the Supreme Court. This dataset excludes hundreds of unreasoned dismissal orders at the SLP notice stage and reflects only contested appellate litigation involving substantial constitutional questions or prolonged custody exceeding 14 months.

AI-use disclosure: We used Google Gemini Pro to assist in structuring the initial visualization dashboard, writing rendering scripts, cross-checking neutral INSC citation numbers, and adapting the data into this print-ready format. We did not rely on AI summaries or headnotes to code the dataset. Every judgment's full PDF was read and verified against the original text.

Coded Dataset

#	Case Name	Citation	Outcome	Who Won	Provision	Issue in One Line	Holding in One Line
1	Vijay Madanlal Choudhary v. Union of India	2022 INSC 757	Dismissed	State	s 45 PMLA	Whether the post-2018 revival of the twin bail conditions under Section 45 PMLA is constitutionally valid.	Upheld the constitutional validity of the revived twin bail conditions under Section 45 PMLA.
2	Directorate of Enforcement v. M. Gopal Reddy	2023 INSC 163	Allowed	State	s 45 PMLA	Whether High Court erred in granting anticipatory bail without applying rigours of Section 45 PMLA.	Set aside anticipatory bail order as twin conditions apply strictly to anticipatory bail.
3	Directorate of Enforcement v. Aditya Tripathi	2023 INSC 531	Allowed	State	s 45 PMLA	Whether completion of investigation in scheduled offence justifies regular bail in PMLA without s 45.	Quashed bail because the court ignored mandatory Section 45 twin conditions.

#	Case Name	Citation	Outcome	Who Won	Provision	Issue in One Line	Holding in One Line
4	V. Senthil Balaji v. State	2023 INSC 677	Dismissed	State	s 19 PMLA	Whether habeas corpus is maintainable against a judicial remand order under PMLA.	Dismissed appeals, holding judicial remand cannot be challenged via habeas corpus.
5	Pankaj Bansal v. Union of India	2023 INSC 866	Allowed	Individual	s 19 PMLA	Whether mere oral reading of the grounds of arrest satisfies Section 19(1) PMLA.	Held arrest illegal, ruling written grounds of arrest must be furnished to the arrestee.
6	Manish Sisodia v. CBI	2023 INSC 956	Dismissed	State	s 45 PMLA	Whether appellant was entitled to regular bail under Section 45 PMLA at the initial stage.	Refused bail due to prima facie material, reading right to speedy trial into s 45.
7	Tarun Kumar v. Asst. Director ED	2023 INSC 1006	Dismissed	State	s 45 PMLA	Whether an accused can claim bail on parity when co-accused were granted bail.	Dismissed bail, parity is not automatic and s 50 statements carry evidentiary weight.
8	Saumya Chaurasia v. ED	2023 INSC 1073	Dismissed	State	s 45 PMLA	Whether first proviso to s 45(1) mandates automatic grant of bail to a woman accused.	Dismissed appeal, word 'may' confers judicial discretion and is not mandatory for women.
9	Ram Kishor Arora v. ED	2023 INSC 1082	Dismissed	State	s 19 PMLA	Whether mandate in Pankaj Bansal requiring written grounds operates retrospectively.	Requirement applies prospectively from 03-10-2023; written communication within 24hrs satisfies s 19.
10	Satyendar Kumar Jain v. ED	2024 INSC 217	Dismissed	State	s 45 PMLA	Whether appellants discharged threshold burden under Section 45 regarding accommodation entries.	Dismissed bail, appellants failed to satisfy twin conditions as prima facie material existed.
11	Tarsem Lal v. ED	2024 INSC 434	Allowed	Individual	s 44 PMLA	Whether accused appearing on summons post-cognizance must apply for bail under s 45.	Accused appearing on summons is not in custody, need not satisfy s 45 bail conditions.
12	Manish Sisodia v. ED	2024 INSC 595	Allowed	Individual	s 45 PMLA	Whether prolonged incarceration of 17 months overrides statutory embargo under s 45 PMLA.	Granted regular bail, constitutional right to speedy trial under Art 21 overrides s 45.
13	Kalvakuntla Kavitha v. ED	2024 INSC 632	Allowed	Individual	s 45 PMLA	Whether woman accused can be denied first proviso benefit solely because she is educated.	Granted bail, setting aside artificial exclusion of educated women from beneficial scope.
14	Prem Prakash v. Union of India	2024 INSC 637	Allowed	Individual	s 45 PMLA	Whether s 50 statements of accused already in custody are admissible to deny bail.	Granted bail, statements of an accused already in custody are hit by Evidence Act s 25.
15	V. Senthil Balaji v. Deputy Director	2024 INSC 739	Allowed	Individual	s 45 PMLA	Whether courts can grant bail despite s 45 where accused suffered 15 months custody.	Granted bail, s 45 cannot authorize indefinite pre-trial detention.

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16	Union of India v. Kanhaiya Prasad	2025 INSC 210	Allowed	State	s 45 PMLA	Whether High Court can grant regular bail casually without recording s 45 satisfaction.	Set aside bail order, compliance with twin conditions under Section 45 is mandatory.
17	Udhaw Singh v. ED	2025 INSC 247	Allowed	Individual	s 45 PMLA	Whether undertrial with 14 months incarceration is entitled to bail under Art 21.	Granted bail, prolonged custody with no realistic prospect of trial infringes Art 21.
18	Arvind Dham v. ED	2026 INSC 12	Allowed	Individual	s 45 PMLA	Whether gravity of economic offence can eclipse Art 21 right to speedy trial.	Granted bail, economic offences do not form a homogeneous class for automatic bail denial.